

Court No. - 29

Case :- WRIT - C No. - 34848 of 2009

Petitioner :- Mahipal Alias Mahipal Singh

Respondent :- State Of U.P. And Others

Petitioner Counsel :- K.A. Usmani

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Sunil Ambwani, J.

Hon'ble Ran Vijai Singh, J.

Heard learned counsel for the parties.

It is contended that the petitioner had applied for new connection for which he had deposited the abstract cost. According to the estimate prepared, the length of LT line was measured as 270 mtrs. The proposed sites were not less than 200 mtr. from the connection of Raj Pal son of Mohar Singh. The petitioner was not provided with electricity connection inspite of depositing estimated cost and is now facing prosecution for drawing electricity unauthorisedly from the connection of Shri Raj Pal by laying only a 10 mtr. line. It is contended that the entire story set up by the prosecution is false as there is no electricity connection available within the radius of 10 mtrs. to be tapped by the petitioner. The checking party recovered only 10 mtr. cable, and has not indicated as to how the petitioner can tap the line with such small cable.

In any case we find that the petitioner has right to raise these objections before the Executive Engineer, in theft case under para 8.1 (b) of the U.P. Electricity Supply Code, 2005, before final assessment is made.

Having regard to the facts and circumstances, we **dispose of** this writ petition with directions that if the petitioner files objections, the Executive Engineer will consider the same very expeditiously and if possible within a period of one month. The recovery certificate has not been issued against the petitioner so far and in the circumstances we do not propose to pass any order. However, if recovery certificate and citation is issued, in the meantime, the same shall remain suspended till the final assessment order is passed by the Executive Engineer.

Order Date :- 13.8.2009

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